

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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RAYNALDO COLLIMOE,

Index No.

Purchased 8-12-19

Plaintiff

Plaintiff designates Bronx
County as the place of trial

- against -

The basis of the venue is
where the tort arose

**THE CITY OF NEW YORK,
POLICE OFFICER NICHOLAS MCGARRY
(shield # 05276),**

SUMMONS

Defendants.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
August 12, 2019



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****RAYNALDO COLLIMOE,****Plaintiff,****Index No.
Verified Complaint****- against -****THE CITY OF NEW YORK,
POLICE OFFICER NICHOLAS MCGARRY
(shield # 05276),****Defendants.**

Plaintiff RAYNALDO COLLIMOE, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff RAYNALDO COLLIMOE was a resident of New York County, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendant, POLICE OFFICER NICHOLAS MCGARRY(shield #05276) ("P.O. MCGARRY") was and is a police officer employed by Defendants.

BACKGROUND

5. On February 9, 2017, at approximately 5:30 a.m., in the vicinity of 725 Arnow Avenue in Bronx County, without just cause or provocation, P.O. MCGARRY, a police officer with NEW YORK CITY POLICE DEPARTMENT, handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Criminal Possession of a Controlled Substance in the Third Degree and related charges.
6. On or about February 9, 2017, a criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiff commenced.
7. Plaintiff remained incarcerated until Plaintiff made bail on November 16, 2017.
8. The criminal matter was terminated in favor of Plaintiff on August 14, 2018 when a jury acquitted Plaintiff of all charges.

PROCEDURAL POSTURE

9. On September 21, 2018, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
10. More than thirty days have elapsed since service of said notice, and defendant CITY has failed to pay or adjust this claim.
11. A 50-H hearing has been held.
12. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.

13. Plaintiff has duly complied with all conditions' precedent to the commencement of this action.

FIRST CAUSE OF ACTION: MALICIOUS PROSECUTION

14. Paragraphs 1-13 are incorporated by reference as though fully set forth herein.

15. In arresting Plaintiff, the Defendants acted with malice.

16. The Defendants lacked probable cause to arrest Plaintiff.

17. The Defendants, including P.O. MCGARRY, deliberately gave false and misleading testimony before the Grand Jury.

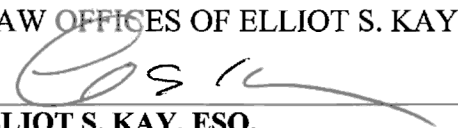
18. Plaintiff was found "not guilty" of all charges on August 14, 2018.

19. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY
August 12, 2019

THE LAW OFFICES OF ELLIOT S. KAY


BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff

888 Grand Concourse, Suite 1H

Bronx, NY 10451

(212) 939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**-----X
RAYNALDO COLLIMOE,

Plaintiff,

-against-

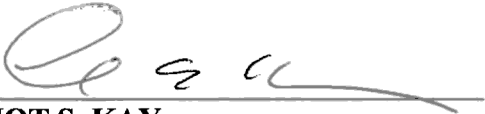
Index No.Purchased: 8-12-19**VERIFICATION****THE CITY OF NEW YORK,
POLICE OFFICER NICHOLAS MCGARRY
(shield # 05276),**Defendants

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I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, NY
August 12, 2019



ELLIOT S. KAY